Purchase Agreement

No.:
Date: **09/03/2021**

Buyer	Seller
Topband India Private Limited Address: Plot No A-22/10, MIDC, Chakan Industrial Area Phase-2, Telegaon Chakan Road, Khalumbre, Village Mahalunge, Chakan,pune, Maharashtra, 410501	NIHVA Technologies Pvt Ltd Address: 187, G-Block, 1st Floor, Above Renault Showroom, Thermax chowk, MIDC, Chinchwad.

NIHVA TECHNOLOGIES PVT. LTD. * PUNE *

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Based on the cooperative principles of mutual benefits and consensus, Buyer and Seller have entered into and shall comply with this Agreement through amicably negotiation.

I. Subject Matter

1. Buyer agrees to purchase from Seller and Seller agrees to sell to Buyer as per given Specification in Quote NO SQT20-21 2964 R3 Date 09.03.2021, that are produced or sold by Seller hereunder according to Buyer's purchase contract against PO NO C0387.

Sr No	Description	Size		Qty	Supply Charges in INR		Installation Charges in INR	
		Clear Width (mm)	Clear Length (mm)	(Nos)	Unit Price	Total Amount	Unit Price	Total Amount
1	NIHVA Make Dock Leveller 15 Ton	2000	2500	1	210,000	210,000	Inclusive	
2	Pit Mounted Scissor Lift - 3 Ton	2000	2000	1	330,000	330,000	Inclusive	
				Sub Total		540,000		
				Discount 5%		27,000		
				Grand Total		513,000		
	P&F Charges					NIL		
	Total Without Taxes					513,000		-
	GST Extra @ 18%			18%		92,340		-
	Total With Taxes					605,340		-
	Total Supply + Installation With Taxes							605,340
3	Transportation Charges					Inclusive		
4	Unloading Charges @ Site					Inclusive		

2. Product specifications

Products shall be produced according to the specifications or drawings as agreed by the Parties and confirmed by Buyer. Without Buyer's written confirmation, Seller may not alter any element that may impact the production of the Products (including but not limited to altering the performance, raw materials or workmanship, etc. of the Products).

3. Sealing of samples

If Buyer needs to seal the samples of the Products, Seller must produce and deliver Products according to the standards of sealed samples. In case of any change, Seller shall notify Buyer, and shall resubmit samples after the receipt of Buyer's permission.

4. The specific specifications, model, quantity, price, delivery period, etc of each batch shall be subject to the purchase contract of Buyer.

II. Purchase Order

1. Buyer shall place a purchase contract on Seller by fax, email, network tools, Topband supplier collaborative system, etc. Seller shall, within 4-5 weeks after the receipt of the purchase contract from Buyer (if Buyer otherwise specifies other time limit in the purchase contract, Seller shall comply with such time limit) confirm, or raise an objection to, the delivery period, price, etc in writing. If Seller fails to confirm or raise an objection within the specified time limit, Seller will be deemed as accepting the purchase contract, and such purchase contract shall immediately become legally effective upon Seller.

2. Seller may neither reject any purchase contract of Buyer nor refuse to deliver the Products according to the requirements of the purchase contract without good cause; otherwise it shall be deemed as a default of Seller.

3. Buyer may require changing the contents of original purchase contract in writing in respect of NO. Products on

such purchase contract; if Seller has evidence proving that it has started to produce such Products, Buyer may assist in treating such Products that have been produced, except that Seller is agent/distributor.

III. Capacity and Delivery Requirements

1. Once Seller accepts a purchase contract, it guarantees that it shall produce/deliver the Products strictly according to such purchase contract to meet the demand of Buyer.
2. Delivery period shall be (4-5) weeks as from the date of receipt of confirmed purchase order, Advance Payment & Drawing approval .the specific delivery date shall be subject to the delivery period or delivery plan as confirmed by the Parties in writing; in case of any conflict, the delivery plan shall prevail.
3. Delivery place shall be the place as designated by Buyer (for example, Buyer's designated warehouse); B shall transport, load and unload the Products at its own expense. Once Buyer's receiving personnel confirm by **sealing and signing** the receipt note, the Products shall be deemed as being delivered.
4. At the time of actual delivery, in addition to the quantity as indicated in purchase contract, Seller shall dispatch the same products to Buyer free of charge according to 0 % of the quantity of purchase contract as spare products.
5. In case of early delivery or over-delivery of Seller, Seller should give prior intimation to Buyer on delivery date."

IV. Package

1. Seller shall pack the Products with clear marks and uniform specifications according to standard protective measures. The package shall be suitable for long-distance transportation, moisture-proof, shockproof, anti-rust and anti-rough handling, so as to ensure that the Products arrive at site in good condition. Seller shall assume the packaging costs. If Buyer has special requirements about package, Seller shall pack the Products according to such requirements and may not make any change without permission; otherwise the losses arising therefrom shall be assumed by Seller.
2. Each batch shall be accompanied with detailed packing list (that specifies the name, specifications, quantity, etc of such batch), factory inspection report and qualification certificate; otherwise Buyer has the right to refuse to inspect such batch or to return such batch.
3. If any Products must be repaired or repacked due to the failure of the package of the Products to conform to the provisions hereof, Seller shall repair or repack such Products at its own expense; if Buyer requires compensation instead of repair or repacking, Seller shall compensate for the difference between the value of unqualified package and that of qualified package to Buyer. In case of any damage of the Products due to the package that does not meet the provisions hereof, Seller shall make compensation.

V. Quality Requirements and Technical Standards

1. The quality of the Products must conform to the specifications or drawings as confirmed by Buyer. In case of any sealed sample, the quality of the Products shall also conform to the standards of such sealed sample.
2. If Seller makes any change to the Products (including but not limited to specifications, structure, materials, place of production, process, package, workmanship, selection of components, etc), Seller shall notify Buyer in writing prior to such change, and shall resubmit samples to Buyer after the receipt of Buyer's permission. After Buyer has confirmed the new samples as qualified and confirm in new purchase contract, Seller may deliver the Products according to the new samples; otherwise the Products shall be deemed as unchanged.
3. The warranty period that Seller assumes for the Products as supplied hereunder shall be 12 Months, as from the date of installation & pass the inspection.
4. In case of any quality problem of the Products, Seller shall assume the liabilities for quality.

5. Any matter relating to product quality that is not covered herein shall be implemented according to *Quality Assurance Agreement* as otherwise signed by the Parties. In case of any discrepancy between this Agreement and *Quality Assurance Agreement*, the latter shall prevail.

VI. Acceptance

1. After the arrival of the Products, the Products will be deemed as being effectively confirmed by Buyer upon being signed and stamped with the designated receiving seal by Buyer's receiving personnel. (The specimen of receiving seal is otherwise attached hereto).
2. Acceptance standards shall be implemented according to the standards of the samples as confirmed and sealed by Buyer or the specifications as recognized by Buyer. In case of the failure of the Products to conform to the samples or specifications, or in case of short shipment of the Products, the Products will be treated as unqualified.
3. Buyer shall timely complete preliminary acceptance after the receipt of the Products; if Buyer has any objection during the acceptance process, it shall immediately notify Seller. Seller shall immediately treat the objection after the receipt thereof (within 4 hours during working time if Seller is in Pune, within 24 hours during working time if Seller is outside Pune; otherwise Seller will be deemed to accept the objection and treatment opinions as raised by Buyer. The Products on Buyer's production line will be deemed as finally accepted, namely, in case of any quality problem of the Products on Buyer's production line, such Products shall still be deemed as unqualified.
4. The Products that fail to pass acceptance shall be timely treated by Seller and may not impact Buyer's normal production. Buyer may select from such Products for use due to urgent need for production, and the labor costs and other expenses arising therefrom shall be assumed by Seller; If Buyer requires replacing any Products, Seller shall timely replace such Products, and the late delivery arising therefrom shall be treated according to the liabilities for late delivery as specified herein.
5. Even if Buyer has confirmed delivery note and made payment according to invoice, or even if Products have been confirmed by Buyer in writing or the Products are automatically confirmed as qualified beyond the inspection period as agreed by the Parties, it shall not mean that Buyer has fully recognized the quality of the Products. Within the limitation of action as specified by prevailing laws and regulations, Buyer still has the right to raise quality objection.

VII.Spare Materials

1.The Seller shall supply Buyer with Spare Materials during the entire duration of this Agreement and for a period of six (6) months after the phase out of a Material in factory production.
2.For a period of six (6)months after a Material was phased out from factory production, the prices charged for Materials shall not be changed except for any adjustments directly related to changes in the cost of raw materials and/or delivery conditions for such Material.

VIII.Settlement Method and Period

1. Payment conditions: After the Products have been delivered and accepted, Seller shall timely check accounts, issue and submit the statutory GST invoice to Buyer, according to the time as specified in purchase contract, so that Buyer may arrange payment after the receipt of the invoice.
2. Payment method: **30% advance INR 153900, 60% + GST INR 390906 after delivery material at Topband & 10% INR 60534 after installation,** payment period shall be calculated as from the date when Buyer's finance department has accepted the invoice. If Seller fails to timely check accounts or issue invoice due to Seller's cause, the settlement period will be automatically postponed by month.
3. Buyer has the right to refuse to pay the price of Products that does not conform to the provisions of this Agreement, and shall not assume any liabilities arising therefrom.

IX. Rights and Responsibilities

1. Buyer's responsibilities:

(1) Buyer shall provide the information relating to the production of Products, so that Seller may prepare materials according to such information.

(2) Buyer shall take delivery of the Products as scheduled herein, and shall pay the price of the Products according to the payment method as agreed by the Parties after Seller has checked accounts and issue an acceptable GST invoice on time.

(3) Buyer has the right to require Seller to adjust the supply prices of the Products according to the change of market price of Buyer's products, the change of batch supply size and raw material price of Seller, etc, and the contents and range of such adjustment shall be determined by the Parties through negotiation.

(4) Buyer shall complete other matters as specified herein.

2. Seller's responsibilities:

(1) Seller shall produce Products according to purchase contract as scheduled with high quality, and undertake to deliver the Products as scheduled.

(2) Under the equal transaction conditions of the same industry, Seller guarantees that the product prices as provided by Seller to Buyer shall be no more than those as provided by Seller to any other customer. Once Seller breaches such provision, Buyer has the right to require Seller to refund the difference. If the prices of Products are reduced due to the decrease of market price or raw material price, cost reduction, decrease of agency/distribution price, etc, Seller shall take the initiative to reduce the product prices for Buyer; if Seller fails to timely reduce the prices, Seller shall refund the total price difference of all the Products that are supplied within the period (from the date when the prices of the Products shall be reduced to the date when Seller actually reduces such prices for Buyer) to Buyer; without prior negotiate with Buyer, Seller may not increase the prices of Products. For the price agreed by both parties, if Buyer makes a mistake in the unit price when placing an order, Seller must immediately notify Buyer. Otherwise, if it is found by Buyer, not only Buyer will recover the price difference from Seller, but also it will influence the assessment on Seller and the distribution and production of orders.

(3) Notification of suspension of production/remodeling: Seller guarantees that if Seller intends to suspend the production of the Products of the supply plan hereunder or remodel such Products (including version upgrade), Seller shall notify Buyer in writing at least 6 months in advance. Before Buyer confirms the substitution materials, Seller must guarantee the normal delivery of raw materials. Seller agrees to compensate for all losses as suffered by Buyer due to the breach of such provision by Seller.

(4) Seller shall provide actual bank account number and account name to Buyer. In case of any change of bank account number or name, Seller shall immediately notify Buyer in writing; otherwise Buyer has the right to return GST invoice and to correspondingly postpone the payment period.

(5) In case of any change of enterprise name of Seller, Seller shall immediately notify Buyer, and shall provide the notification of change, business license, tax registration certificate, etc as issued by the administration for industry and commerce according to the requirements. After such change, Seller shall re-sign this Agreement and relevant supplier agreement with Buyer with the new enterprise name.

If Seller decides to change company name, it shall immediately notify Buyer. If Seller fails to notify in advance or viciously changes name, Buyer has the right to freeze the price of Products of Seller and charge a penalty from Seller as the case may be, and Seller may not raise any objection; in addition, Seller shall compensate for all losses as suffered by Buyer therefore. In case of serious circumstance, Buyer has the right to unilaterally decide to suspend or terminate this Agreement.

(6) Seller shall authorize special personnel to receive payment. If any such personnel forge Seller's certificate and

seal to receive any payment for Products by cheating, Seller shall recover the payment from such personnel, and Buyer shall not assume any responsibilities.

(7) Seller may not transfer its rights and obligations hereunder to any third party.

(8) Seller shall complete other matters as agreed herein.

(9) Both parties promise to comply with applicable laws and regulations in relation to data protection. If Seller needs to collect and process the personal data of the relevant personal data subjects on behalf of Buyer during the process of rendering services for Buyer hereunder, Seller shall guarantee that all the activities it conducts comply with the requirements of applicable laws and regulations (including but not limited to EU GDPR and U.S. privacy act, etc.). Seller shall carry out date processing activities in accordance with the provisions hereof or Data Processing Agreement, Data Cross-border Transmission Agreement and other documents signed by and between both parties and Buyer's instructions. Otherwise, Seller shall be liable for the corresponding consequences caused thereby.

X. Intellectual Property

1. Seller guarantees that all Products as supplied by it to Buyer:

(1) If Seller is manufacturer, Seller guarantees that the Products are originally manufactured and assembled and that Seller owns the full and lawful title of such Products; if Seller is agent/distributor, Seller must provide agency/distribution agreement, so as to guarantee that the supply channel is regular and lawful and that the Products are manufactured and assembled by the original brand manufacturer.

(2) The Products shall not have any defect of title so as to avoid any claim from a third party;

(3) The Products shall not infringe the intellectual property right or other legitimate rights and interests of any third party;

2. If any third party lodges a tort action against Buyer due to any of the aforesaid causes, Seller shall assist Buyer and assume the expenses arising therefrom (including but not limited to litigation costs, attorney's fee, travelling costs, etc). In addition,.Seller agrees to compensate for all losses as suffered by Buyer therefore.

1. Seller shall strictly keep the business information and technical information as provided by Buyer (including but not limited to supply quantity, price, and the technical materials, drawings, customer information, business plan, personnel information as provide by Buyer) and any information relating to Buyer that Seller obtains due to the performance of this Agreement confidential, and may not disclose such information, and shall use such information only for the purpose of performing this Agreement.

2. Seller may not directly or indirectly utilize the opportunity of contacting or trading with Buyer or use the trade secrets or intellectual property of Buyer, to conduct any improper act that competes with Buyer's business or obstruct any potential or actual trading act between Buyer and its customer.

3. Liabilities for breach

3.1 If Seller fails to perform the aforesaid duty of confidentiality but does not bring any losses or serious consequences to Buyer, Seller shall pay a penalty of no more than 10% of the value of the contract.

3.2 If the breach of Seller as described in the preceding paragraph brings any losses or serious consequences to Buyer, Seller shall assume the liabilities for breach; compensation for losses shall be calculated as follows:

A. Compensation for losses shall be the actual economic losses as suffered by Buyer due to the breach of this Agreement by Seller. Calculation method: if the selling quantity of Buyer's products decreases due to any infringement act of Seller, the compensation for losses shall be the total decrease quantity multiplied by the profit of each Product;

B. If it is difficult to calculate Buyer's losses according to the calculation method as mentioned in paragraph A, the compensation for losses shall be no less than 50% of the total transaction amount as occurring between the Parties;

C. The reasonable expenses as paid by Buyer for investigating the breach of this Agreement by Seller;

D. If the breach of this Agreement by Seller infringes the trade secrets of Buyer, Buyer may require Seller to assume the liabilities for breach as required herein, or require Seller to assume the liabilities for infringement according to the relevant national laws and regulations.

E. If Buyer is claimed against by any third party for the liabilities for breach or infringement due to the breach of this Agreement by Seller, Seller shall assume all losses as suffered by Buyer therefore, including the litigation costs, arbitral costs, attorney's fee, appraisal costs, etc as paid by Buyer for resolving the dispute between Buyer and the third party.

XI. Confidentiality

1. Seller shall strictly keep the business information and technical information as provided by Buyer (including but not limited to supply quantity, price, and the technical materials, drawings, customer information, business plan, personnel information as provide by Buyer) and any information relating to Buyer that Seller obtains due to the performance of this Agreement confidential, and may not disclose such information, and shall use such information only for the purpose of performing this Agreement.

2. Seller may not directly or indirectly utilize the opportunity of contacting or trading with Buyer or use the trade secrets or intellectual property of Buyer, to conduct any improper act that competes with Buyer's business or obstruct any potential or actual trading act between Buyer and its customer.

3. Liabilities for breach

3.1 If Seller fails to perform the aforesaid duty of confidentiality but does not bring any losses or serious consequences to Buyer, Seller shall pay a penalty of no more than 10% of the value of the contract.

3.2 If the breach of Seller as described in the preceding paragraph brings any losses or serious consequences to Buyer, Seller shall assume the liabilities for breach: compensation for losses shall be calculated as follows:

A. Compensation for losses shall be the actual economic losses as suffered by Buyer due to the breach of this Agreement by Seller. Calculation method: if the selling quantity of Buyer's products decreases due to any infringement act of Seller, the compensation for losses shall be the total decrease quantity multiplied by the profit of each Product;

B. If it is difficult to calculate Buyer's losses according to the calculation method as mentioned in paragraph A, the compensation for losses shall be no less than 50% of the total transaction amount as occurring between the Parties;

C. The reasonable expenses as paid by Buyer for investigating the breach of this Agreement by Seller;

D. If the breach of this Agreement by Seller infringes the trade secrets of Buyer, Buyer may require Seller to assume the liabilities for breach as required herein, or require Seller to assume the liabilities for infringement according to the relevant national laws and regulations.

E. If Buyer is claimed against by any third party for the liabilities for breach or infringement due to the breach of this Agreement by Seller, Seller shall assume all losses as suffered by Buyer therefore, including the litigation costs, arbitral costs, attorney's fee, appraisal costs, etc as paid by Buyer for resolving the dispute between Buyer and the third party.

XII. Liabilities for Breach

1. Seller shall deliver Products strictly according to the quantity as specified in purchase contract, without short shipment. Once Buyer finds one product less, Seller shall make compensation according to ten times the price of such product. In case of serious circumstance, Seller shall pay a penalty. The penalty shall be no less than INR 7000 each time; the penalty of less than INR 7000 shall be calculated according to INR 7000. Any such penalty shall be deducted from the payment from Products, and Seller shall otherwise make up the insufficiency. If Seller fails to deliver the

adequate quantity, Seller shall replace or make up within the time limit as required by Buyer and assume all expenses arising therefrom; in addition, Buyer has the right to investigate against Seller for the liability for compensation according to the degree of actual impact.

2. Seller guarantees that the quality of the Product shall conform to the provisions of this Agreement. Once Buyer finds any defective product, it shall immediately notice Buyer; Seller shall replace such defective product without compensation within the time limit as required by Buyer, and assume all expenses arising therefrom (including but not limited to labor costs, repair costs, charge for loss of working time, etc). If Buyer's any customer returns any Product or makes a claim due to any quality problem of such Product, Seller shall assume all economic losses and legal responsibilities arising therefrom. See *Quality Assurance Agreement* as otherwise signed by the Parties for the punishment measures about other acts of breach of the quality clauses.

3. Seller shall deliver Products punctually. In case of any delay, Seller shall not also continue delivering qualified Products, but also pay a penalty to Buyer at the rate of 0.5% if the total price of such purchase contract that is late per day of delay; the penalty shall be deducted from the payment for Products (the deduction shall be no less than INR 7000 each time, the amount of less than INR 7000 –will be calculated as INR 7000), and Seller shall otherwise make up the insufficiency. If Buyer suffers the loss of production or compensates for the losses of its any customer therefore, in addition to the penalty, Seller shall assume all liabilities for compensation, such as suspension of production; the Parties agree that if Buyer shuts down due to the late delivery of Seller, the losses arising therefrom shall be calculated at INR 700 /person/hour; if Buyer suspends production line/production, the losses arising therefrom shall be calculated at INR 700/line/hour; if Buyer's any customer cancels purchase contract therefore, in addition to the penalty, Buyer shall have the right to cancel the purchase contract as placed on Seller and require Seller to assume all liabilities for compensation.

4. In case of late delivery due to quantity shortage or quality problem of the Products as delivered by Seller, Seller shall assume the liabilities for late delivery, and Buyer has the right to refuse to pay for the portion of the Products that has quality problem or is inadequate in quantity.

5. After Seller has accepted a purchase contract from Buyer, without Buyer's written permission, Seller may not entrust any third party to produce or process the Products; otherwise it shall constitute a material breach of Seller, and Seller shall pay a penalty to Buyer according to 10 times the price of such Products and compensate for all losses as suffered by Buyer therefore, except that Seller is agent/distributor.

6. In case of any breach of this Agreement by either party, the breaching party shall compensate for all losses as suffered by the non-breaching party. If Seller is not the manufacturer of the Products, Seller shall assume all responsibilities of the manufacturer of the Products, and may thereafter recover from the manufacturer of the Products by itself.

XIII. Force Majeure

1. The Parties shall not be held responsible for any breach attributable to force majeure. Force majeure refers to the unforeseeable and unpreventable or avoidable event that directly impacts the performance of this Agreement or causes this Agreement not to be performed as agreed herein, such as earthquake, typhoon, flood, fire or riot, war, strike, social event, etc.

2. If either party cannot perform this Agreement in whole or in part due to force majeure, if shall notify the other party in writing of the circumstances of such event within 3 days after the occurrence therefore, and shall timely take effective measures to prevent the losses from expanding. If the force majeure cannot be eliminated after 60 days as from the date of occurrence, the Parties may dissolve this Agreement through negotiation.

XIV. Alteration and Dissolution

1. Without the written consent of the other party, either party may not alter this Agreement.

2. In case of any of the following events, Buyer has the right to dissolve this Agreement:

(1) Seller fails to deliver Products as scheduled for cumulative three times or consecutive twice within a quarter, or the Products as delivered by Seller cause major quality accident;

(2) Seller rejects any purchase contract without good cause, or fails to supply Products as required in purchase contract;

(3) Seller has commercial fraud or conduct improper transaction;

(4) Seller seriously breaches this Agreement;

(5) If Seller breaches the relevant laws and regulations or the contractual provisions, Seller shall also compensate for all losses as suffered by Buyer therefore.

3. If Seller intends to terminate cooperation or suspend the supply of certain materials, Seller shall notify Buyer in writing 60 days in advance; otherwise Seller shall assume all losses as suffered by Buyer therefore.

4. Once this Agreement is dissolved, Seller shall return all things and materials (including but not limited to mould, sample, trademark, logo, technical materials, etc) that are provided by Buyer to Seller for performing this Agreement to Buyer within 15 days.

5. Unless otherwise agreed by the Parties, the Parties shall still perform the purchase contract that has become effective prior to the termination of this Agreement, and this Agreement shall still be applicable to the purchase contract that is outstanding after the termination of this Agreement.

6. The intellectual property clause, confidentiality clause, warranty clause, anti-commercial bribery clause and dispute clause shall survive the dissolution or termination of this Agreement.

XV. Customs-Trade Partnership against Terrorism

1. Seller shall pass the relevant certification of C-TPAT（Customs-Trade Partnership against Terrorism. If Seller fails to pass the relevant certification, Seller must guarantee that the products as supplied by Seller during the cooperation with Buyer shall be safe and reliable and conform to the safety standards that are equivalent to C-TPAT from source to arrival at Buyer's designated place.

2. In case of any breach of the aforesaid provisions, Seller shall assume all legal responsibilities and economic losses as suffered by Buyer therefore (including but not limited to compensation, litigation costs, attorney's fee, market reputation, etc).

XVI. Anti-Commercial Bribery

The Parties are both against the act of accepting or offering bribes and other improper commercial bribery. Once found, Seller shall immediately report to Buyer through the following channels:

Email: tbjb@topband.com.cn

Telephone: 0755-27651888-8040

Telephone: 0755-27651888-8130

Reporting letter shall be posted to: Audit Department of Shenzhen Topband Co., Ltd.

Liyuan Industrial Zone, Tangtou Village, Shiyan Town, Bao'an District, Shenzhen Municipality

Postcode: 518108

WeChat public account of the Audit Department for reporting and complaints: "拓邦审计" "topbandaudit", QR code:

If Seller fails to report any improper commercial competition, it shall be deemed as default and treated according to the provisions of this Agreement about liabilities for breach.

XVII. Miscellaneous

1. For the purpose of this Agreement, "all losses" or "all liabilities for compensation" include but are not limited to loss of working time, rework costs, quality penalty, complaint/claim from Buyer's customers, litigation costs, attorney's fee, etc.

"Penalty", "fine", "punishment" etc as described in this Agreement are not administrative wording but the civil wording during the transactions between the Parties, and their meaning is similar to penalty, compensation, etc.

Any claim, penalty, etc as made by Buyer to Seller will be notified to Seller in writing in the form of "Notification". Seller shall make a written reply (accept or raise an objection) within 2 days after the receipt of the Notification; otherwise Seller will be deemed to accept the contents of the Notification.

2. The penalty, compensation and other economic losses that shall be paid as specified herein shall be paid up by Seller within 30 days after the responsibilities thereof are determined; otherwise Seller shall pay late interest to Buyer according to the provisions of the (Reserve bank of India) about late payment in respect of the amount that is late.

3. For any matter not covered herein, the Parties may otherwise sign a supplementary agreement through negotiation. Such supplementary agreement shall bear the same legal force with this Agreement upon being signed and sealed by the Parties.

4. During the transactions between the Parties, the appendixes hereto and the agreement, email, network tools, fax, letters, etc relating to the performance of this Agreement shall form an integral part of this Agreement and bear the same legal force with this Agreement; in case of any discrepancy between the aforesaid documents and this Agreement, this Agreement shall prevail, unless specially agreed in other agreement.

5. It is expressly agreed by and between the Parties that no other Court/s other than the Courts in Pune shall have the Jurisdiction to entertain, try and decide any claim/s, demand/s, suit/s, dispute/s, etc. arising from this agreement.

Any dispute controversy or claim between the parties arises out of the connection with this agreement, including existence, breach and termination or validity thereof (Dispute), the parties shall use all the endeavors to negotiate the view to resolving the dispute amicably. If the party gives another party a notice for the dispute arisen (Dispute Notice) and the parties unable to resolve the dispute amicably within 30 days of service of the dispute notice (or such a longer period if parties may mutually agree), then the dispute shall be referred to Arbitration. The dispute shall be refereed to and finally resolved by the arbitration under the Arbitration and conciliation Act, 1996. The number of arbitrator shall be one, selected mutually by the parties. Any arbitral award shall be final and binding on the parties and the parties waive irrevocably any rights to any form of appeal, review or recourse to any state or other judiciary authorities is so far as such waiver validly made. The seat of the arbitration shall be Pune. The language of the arbitration shall be English.

In respect of any dispute arising of any quality problem of any products, Seller shall provide evidence to prove that such products have no quality problem.

6. This Agreement is made in three originals of the same legal force, two for Buyer and one for Seller. This Agreement shall become effective upon being signed and sealed (If it exists) by the Parties and [illegible] in

force until the Parties sign a new agreement, terminate cooperation or the Parties terminate this Agreement through negotiation. If the Parties have no cooperation for more than six consecutive months, the Parties shall re-sign supply guarantee agreement before they resume the cooperation. However, any purchase contract that has been sent prior to the signing of this Agreement but not completed at the time of signing hereof yet, the Parties agree that this Agreement shall become effective from the time when such purchase contract is sent.

7. If Seller fails to sign and seal this Agreement within one month after the receipt hereof, it shall be deemed as abnormal cooperation, and Buyer has the right to suspend purchase contract and delay payment.

Appendixes:

Appendix I: Letter of Authorization for Supplier

Appendix II: Quality Assurance Agreement

Appendix III: Anti-commercial Bribery Agreement

Appendix IV: Trade Security and Anti-terrorism Agreement between Business Partners

Appendix V: Environment and Occupational Health Safety Agreement of Relevant Parties

Appendix VI: Guarantee of Conformity to Environmental Requirements

The Parties have read and fully understood all provisions of this Agreement (including appendixes), and have been clearly informed of the legal consequences after signing and disposal of rights, agree to sign and perform this Agreement as specified herein, and agree that this Agreement has no defect of expression.

(Signature Page, No Text below)

Buyer: Topband India Private Limited

Legal Representative /Authorized Representative:
(Signature and seal)

Date:

Seller: NIHVA Technologies Pvt Ltd

NIHVA TECHNOLOGIES PVT. LTD. PUNE

Legal Representative /Authorized Representative:
(Signature and seal)

Date: 17/03/2024